Research Summary Report

To: Alicia Chang, Esq.

From: Victoria Lee, Paralegal

Date: 5/4/2024

Re: Connor Child Visitation Case

Part A

1. Md. Code Ann., Fam. Law § 9-101 (West, Westlaw through legislation effective through April 9, 2023, from the 2024 Regular Session of the General Assembly)

2. The issue is whether a court can deny custody or visitation rights of the father if there is a likelihood of child abuse or neglect based on documented history and his refusal to take parental and anger-management classes. Under the Maryland statute Family Law § 9-101, the court has the right to deny any visitation rights if the child has been abused or neglected and prevent future abuse to the child. Moreover, if there is no risk of future abuse, the court may allow supervised visitation. Here, the court's opinion will consider rejecting the father's visitation right due to his past criminal convictions, refusal to complete classes, and abuse done to the seven-year-old child and the client Clementine Connor. Additionally, the father may pose a danger to the child in the future as he has not complied with taking court-ordered classes and has unsupervised overnight visitation already. The court will consider rejecting custody and denying visitation rights as the father may be abusive to the child again. Therefore, this opinion is relevant as the court may reject the father's visitation rights as he may abuse the child again, given his history and refusal to comply with classes.

Part B

3. The issue is whether a court can deny custody or visitation rights of the father if there is a likelihood of child abuse or neglect based on documented history and his refusal to take parental and anger-management classes. Under denial of visitation in *In re Billy W.,* 875 A.2d

734 (Md. 2005), the opinion considers denying any visitation rights to the father if the child has been abused or neglected. The case concluded to believe to reject visitation rights to the father as he previously abused three children which posed a danger to the child. Here, the court will use this opinion to consider rejecting the father's visitation rights to prevent future abuse to the seven-year-old child. This court will consider rejecting visitation rights as the father refuses to complete classes and his unsupervised overnight visitation poses a threat of future abuse. The opinion shows reasonable grounds that the father is abusive which is detrimental to the seven-year-old child and Clementine Connor. This opinion may help determine if the court should deny custody and visitation rights for the father. Therefore, this opinion is relevant for concluding visitation rights and limits if abuse is proven to be detrimental to the child.

4. "[R]easonable grounds to believe that a child had been abused by [father] Mr. B based on [father's] acknowledgement to the court that he previously abused three children. . . If no future abuse or neglect was likely to occur, . . . deny visitation. . . or order supervised visitation" (761).

Pinpoint Citation: *In re Billy W.,* 875 A.2d 734, 761 (Md. 2005)

5. The selected opinion is not precedent with the client's case. The issue is whether the precedent in *In re Billy W.* applies to Connor's cases involving denial visitation rights due to the father's history of child abuse and non-compliance with court-ordered classes. Under the Rules of Evidence, it implies that admissibility of evidence and Family Law § 9-101, implies the prevention of visitation rights if a child is abused. Here, to be precedent Connor's case must involve similar facts, issues, and conclusions. For the case, Ms. B. failed to protect her family from the father's continued sexual abuse. This is quite different than child abuse from Connor's case. Connor's case does not involve the admissibility of evidence in context of the child protection of hearings. Connor's issue involves the father's right to visitation and the potential for child abuse, given his refusal to complete court-ordered classes and past criminal convictions. Both cases do not involve the same context, but only regarding preventing future abuse for the child's welfare and safety. Therefore, it is not a precedent as the controlling law in Connor's case is not the primary legal issue.

6. The opinion of *In re Billy W.* is still a good law. The KeyCite yellow flag implicates that the case is considered somewhat negative and to be cautious as the subsequent cases or legislation affect its authority but do not completely undermine its standing as precedent. It is also a yellow flag because of the legislation which implies that the final conclusion did not change but may have been amended or granted certiorari. The case has not been overturned, continues to be cited, and the Maryland rules of evidence were not applied in permanency planning hearings. This is significant as the court admits evidence in cases regarding the welfare and safety of the child. The core findings of this case remain intact and may be used as a precedent when protecting the child's safety and welfare towards abuse. In addition, the opinion states any abuse would allow the court to reject visitation rights to protect the safety and the well-being of the child. Since the father of the client Clementine Connor is in a similar case to Mr. B regarding child abuse, this opinion is relevant and still good law. Therefore, this case is still a good and valid law.

Part C

7. Part A: Westlaw > Statues & court Rules > Maryland > Family Law Statures > GSB Search: "visitation" and "reject!" > 1st case by relevance: § 9-101. Rejection of custody or visitation if abuse likely > Part B: Notes of Decisions tab from part A § 9-101 > Section 7: Denial of visitation > 2nd in order: *In re Billy W.*, 2005, 875 A.2d 734, 387 Md. 405. Infants - Key Number: 2238 > Click on the case > *In re Billy W.,* 875 A.2d 734, 761 (Md. 2005) > Quotes located at Star Page number 761.

References

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